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**Revision Date:**
10/01/2021

**Background:**
A Notice of Action (NOA) must be provided to households (HH) when action is being taken to approve, deny, discontinue, or change CalFresh benefits.

**Purpose:**
This section describes NOA requirements and is being revised after sunset review.

**Policy:**
An adequate NOA must inform the HH of the action being taken, the reason for the action, and the state regulation that supports the action. Adverse NOA's must list what mandatory verification(s) are missing. The NOA must include information about the right to request a state hearing, the availability to receive Aid Paid Pending (APP) while waiting for a state hearing and the potential overissuance (OI) if the action is upheld at the hearing. The NOA must include a phone number to call for additional information and the availability of free legal representation.

An adequate and timely NOA is required to inform a HH of any change in eligibility status or benefit level during the certification period. For a NOA to be considered timely, it must be mailed at least 10 calendar days prior to the effective date of the upcoming change(s) in benefits. A NOA must be provided in the HH's preferred language when available. If a translated NOA is not available, the "Notice of Language Services" form must be provided to the HH with the NOA. HH's have the option to receive certain NOAs electronically, instead of paper correspondence. For more information on electronic notices, refer to E- Notifications Processing Guide in Eligibility Operations Processing Guide (EOPG).

1. Timely NOA:
The following actions do not require a timely NOA:
- Mass changes where notices or posters are used to inform HH's of a change in benefit amount.
- HH receives an increase in benefits.
- Terminating the eligibility of a resident of a drug and alcoholic treatment center when the facility loses its state certification.
- A HH member is disqualified for an Internal Program Violation (IPV). This includes when the HH's allotment is reduced or terminated due to the disqualification.
- Benefits are reduced or discontinued because of the HH not responding to a request for verification which was postponed for Expedited Services (ES).
- Voluntarily requests in writing or in person to discontinue their case.
- The HH moves and is approved for benefits in another State or County.
- A HH's eligibility and benefits are being approved or denied under restoration.

2. NOA Exemptions:
The following situations do not require a NOA:
- All HH members are deceased.
- HH has moved out of the County.
- The HH has been receiving an increased allotment because of a restoration of lost benefits.

- A Semi-Annual Reporting (SAR) HH's allotment is adjusted to consider changes which were anticipated at the time of certification.
- A HH applied for Public Assistance (PA) and CalFresh benefits and has been receiving CalFresh pending the approval of the PA grant. The HH must have been notified at the time of the certification that CalFresh benefits may be reduced or terminated if the PA benefits were approved.
- A HH is converted from a voluntary repayment to allotment benefit reduction because of failure to make agreed repayments.
- A HH's did not respond to a Notice of Expiration of Certification (NEC).
- A HH did not respond to the X NOA (NA 960X SAR Stop Aid Report Not Received) or Y NOA (NA 960Y Stop Aid Report Incomplete).
- Mass changes where notices or posters are used to inform HH's of a change in benefit amount.

**Impacts:**
None

**References:**
ACIN I-33-21
MPP 63-504.2

**Sunset Date:**
This policy will be reviewed for continuance by 10/31/2024.

**Approval for Release:**




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